

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – ELIGIBILITY FACTORS
	Section No./Name	B-1200-FITAP SUPPORT ENFORCEMENT SERVICES
	Document No./Name	B-1220-FITAP Notification To Client of Support Enforcement Requirement
	Effective Date	August 15, 2019

I. STATEMENT OF POLICY

Each applicant for, or recipient of, FITAP is required to assign to the Louisiana Department of Children and Family Services, any accrued rights to support for any other person that such applicant or recipient may have, including such rights in his own behalf or in behalf of any other family member for whom the applicant or recipient is applying for or receiving.

B-1221-FITAP - PO THE AUTOMATIC ASSIGNMENT OF SUPPORT

By accepting FITAP, the client automatically assigns to the State past, present, and future rights to support for the assistance unit.

B-1222-FITAP - PO REQUIREMENTS TO COOPERATE WITH CSE

The client is required to cooperate with Child Support Enforcement (CSE) in:

- identifying and locating the absent parent,
- establishing paternity, and
- obtaining support payments, other payments or property.

Cooperation includes:

- appearing at an office of CSE or contract District Attorney to provide information he has or can secure,
- appearing as a witness, providing information, or attesting to lack of information under penalty of perjury, and
- repaying to CSE all child support payments received and retained after certification. (See [B-1252-FITAP](#).)

B-1223-FITAP - PO GOOD CAUSE CLAIM

A client has the right to refuse to comply with support requirements if it can be proven that compliance is against the caretaker relative's or child's best interest.

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B-1224-FITAP - PO PENALTIES FOR NOT COOPERATING WITH CSE PROGRAM REQUIREMENTS

*** Failure to sign the [OFS Flyer 6](#) will result in ineligibility for the applicant. * Unless Good Cause is verified, ** failure to cooperate with ongoing support requirements will result in a penalty (Refer to B-1224-FITAP-PR).

II. PROCEDURES

Explain to the client:

- the automatic assignment of support,
- the requirement to cooperate with CSE,
- that he may claim good cause for not cooperating with CSE, and
- the penalties for not cooperating with program requirements.

B-1221-FITAP - PR THE AUTOMATIC ASSIGNMENT OF SUPPORT

The client acknowledges the automatic assignment by signing (manually or electronically) the [OFS Flyer 6](#). Refer to [B-620-8-FITAP](#) and [B-1270-FITAP](#) for two-parent households.

B-1222-FITAP - PR REQUIREMENTS TO COOPERATE WITH CSE

Cooperation includes:

- appearing at an office of CSE or contract District Attorney to provide information he has or can secure,
- appearing as a witness, providing information, or attesting to lack of information under penalty of perjury, and
- repaying to CSE all child support payments received and retained after certification. (See [B-1252-FITAP](#).)

B-1223-FITAP - PR GOOD CAUSE CLAIM

The good cause provision is not meant to be a blanket waiver of the child support requirements. It serves to protect families at risk of physical or emotional harm because of these requirements.

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Explain and complete [OFS Flyer 6](#), Notice of Cooperation Requirements and Good Cause provisions under Title IV-D.

Use OFS Flyer 6 at application and at any other time the worker feels it is necessary to assist the client with claiming good cause.

If the application is received online, the Child Support Agreement to Relinquish Child Support Payments (electronic OFS Flyer 6) will display and the applicant may select “Yes” or “No” to the question, “I have read this notice concerning my agreement to relinquish child support payments, to cooperate with CSE, and my right to claim good cause for not cooperating.” and will provide an electronic signature.

- Review the CAFÉ Application Summary PDF to determine whether the applicant selected “Yes” or “No” and explain the content of the OFS Flyer 6 to ensure the applicant understands the requirements.
- If the applicant selected “No”, a manual OFS Flyer 6 is not required if the worker documents in the Wizard that the requirements were discussed and the client expressed understanding of the agreement and intentions to comply.

A manual OFS Flyer 6 must be completed with applicants/recipients if the applicant/recipient submits a paper application, or submits an online application and adds the cash program during the interview. Enter all identifying information. The application must be rejected if the applicant fails to sign and return the manual form.

For all applications:

- acknowledge that the applicant has been provided notice of the requirement by indicating “Yes” to the question, “Is the member informed on this notice of cooperation with Child Support Enforcement and Agreement to Relinquish Child Support Payments?” in the ‘Notice of Cooperation with Child Support Enforcement and Agreement to Relinquish Child Support Payments’ section of the Interview Wizard, and
- make a *** ***Case Note **** indicating whether the client expressed understanding of the agreement and intentions to comply.

Note: If the applicant/recipient understands the requirements but is unwilling to cooperate, good cause must be explored and documented before the application can be rejected. The applicant should be asked if there is any particular reason they do not want to comply and their statement must be documented.

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Explain and complete [OFS Flyer 6A](#), Notice of Good Cause provisions under Title IV-D, if the client wants to claim good cause or requests more information.

If the application is received online, review the CAFÉ Application Summary PDF to determine whether the applicant is claiming good cause:

- The applicant may select “Yes” or “No” to the question, “Would you like to claim good cause?” in the ‘Cooperation with Child Support Enforcement’ section of the online application.
- If the applicant selects “Yes”, then:
 - the applicant will be required to select one of the Good Cause Reasons listed below:
 - Your help may cause serious physical harm to you,
 - Your help may cause serious emotional harm to you,
 - Your help may cause serious physical harm to your child,
 - Your help may cause serious emotional harm to your child,
 - The child was born as a result of rape or incest, or
 - Adoption of the child is pending, and
 - the Notice of Good Cause Provisions under Title IV-D Program (electronic OFS Flyer 6A) will appear near the end of the application and the applicant will be required to check the box, “I have read this notice concerning my right to claim good cause for non-cooperation.” and will provide an electronic signature.

If the applicant/recipient claims good cause through an online application or re-application, explain the good cause provisions contained in the Notice of Good Cause Provisions under Title IV-D Program and accept the electronic signature of the applicant/recipient.

A manual OFS Flyer 6A must be completed with applicants/recipients who wish to claim good cause if the applicant/recipient:

- submits a paper application,
- submits an online application and adds the cash program during the interview,
- submits an online application indicating he/she did not wish to claim good cause and subsequently decides during the interview to claim good cause,
- requests good cause after certification, or
- requests more information regarding good cause.

For all applications, acknowledge receipt of the applicant’s/recipient’s wish to claim good cause by indicating “Yes” or “No” to the question, “Is the applicant claiming good cause?” in the ‘Cooperation with Child Support Enforcement’ section of the Interview Wizard.

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Refer to [B-1240-FITAP](#) for procedures and documentation used to establish good cause.

B-1224-FITAP - PR PENALTIES FOR NOT COOPERATING WITH CSE PROGRAM REQUIREMENTS

For applicants, reject the application if the parent or caretaker relative fails *** to sign the [OFS Flyer 6](#).

For ongoing cases, close the cash assistance case if the parent or caretaker relative fails without good cause to cooperate. If the family:

- is work-eligible, impose a STEP sanction with the appropriate occurrence and reason.
- is not a work-eligible family, close the case for at least one month and until the client complies with the requirement.

Refer to [B-1250-FITAP](#) for procedures used when the client fails without good cause to cooperate.

III. FORMS AND INSTRUCTIONS

OFS Flyer 006 [Form](#) / [Instructions](#) Notice of Cooperation with CSE and Agreement to Relinquish

OFS Flyer 006A [Form](#) / [Instructions](#) Notice of Good Cause Provisions Under Title IV-D Program

IV. REFERENCES

[Title IV of the Social Security Act, Sec. 408](#)

[LAC 67:III.1239](#)